

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TONY TROUSSET,

Petitioner

VS.

ERIN KELLEY,

Respondent

) Case Number: FDI-21-794361

) Hearing Date: August 20, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER RE CHANGE VISITATION
CHANGE OF VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Tony Trouset (Father) and Respondent Erin Kelley (Mother) have one minor child, Massimo (DOB 11/5/2010, age 15), and two adult daughters, ages 20 and 18. The parties share joint legal and physical custody of Massimo on a 2-2-5 parenting time schedule during the school year and a week-on, week-off schedule during the summer.
- 2) On for hearing is Father's 4/25/2026 request for a week-on, week-off schedule during the school year starting 8/31/2026, with the exchanges occurring on Mondays at 3pm. He states that Massimo has expressed support for this schedule. Father believes the schedule is age appropriate and would "provide [Massimo] with longer, uninterrupted stretches to manage schoolwork, extracurricular activities, and social commitments." He states the conflict between the parties is high and that his proposed schedule would "significantly reduce the number of transitions between households" and thus, the parties' interactions, which would be a positive change. Father

1 has filed a memorandum of points and authorities in support of his request, which the Court has
2 reviewed and considered.

3 3) Mother has filed a response and supplemental declaration stating she does “not oppose a week-
4 on/week-off schedule categorically” but if the Court were to order it, the exchanges should take
5 place on Sundays at 8pm, she should have the first week starting 8/30/2026, the school break and
6 holiday schedules should be reworked, and the Court’s 6/25/2025 order relating to summer breaks
7 should remain in place. Mother states that Massimo has stated he prefers the 2-2-5 schedule
8 during the school year, that Father has been pushing for the week-on, week-off schedule, and that
9 he does not wish to speak to Family Court Services (FCS) or be placed in the middle of this
10 conflict. Mother states the 2-2-5 schedule has been working and should not be changed when
11 Massimo is adjusting to being the only child remaining in the home after his middle sister’s
12 departure to attend college. Mother asks for a Tier II interview of Massimo before changes are
13 made.

14 4) On 7/7/2026, Father filed a supplemental declaration in which he requests an order requiring the
15 parties to prioritize Massimo’s volleyball tournaments over parenting time including vacations
16 throughout Massimo’s high school years, until he graduates from high school. He states that
17 Mother took Massimo on a summer trip instead of taking him to a volleyball tournament. Mother
18 opposes this request both procedurally and on the merits; she moves to strike Father’s
19 supplemental declaration and seeks sanctions. She states that Father litigated this issue last year,
20 the Court denied his request, and he is attempting to relitigate it without having filed a new
21 request for order. She states she has already taken Massimo to two out-of-state tournaments and
22 paid for them, that Father has paid for none, and that Father knew of the summer tournament
23 dates when he selected his vacation time and let Mother take the vacation time that overlapped
24 with the tournament dates.

25 5) Father filed a reply declaration and a reply memorandum of points and authorities on 8/13/2026,
26 which the Court has reviewed and considered. He states the volleyball issue is fairly encompassed
27 within his original request and that the tournament schedule was out in December 2025 so that
28 Mother’s summer trip cannot be considered “pre-planned travel” (see 6/25/2025 FOAH) that
29

1 takes precedence over the tournament. He asks that the Court deny Mother's request to strike his
2 supplemental declaration and her request for sanctions.

3 **B. Findings and Orders**

- 4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.
- 8 2) The Court finds it is in Massimo's best interest to modify the current 2-2-5 schedule to a week-
9 on, week-off schedule beginning Sunday 8/30/2026 at 8pm, with Father having the first week and
10 the parties alternating weeks thereafter. All prior orders relating to parenting time during summer
11 and other school breaks and holidays shall remain in place, with the summer, school breaks, and
12 holiday schedules taking precedence over the regular week-on, week-off schedule. The Court has
13 considered the parties' declarations regarding Massimo's wishes and statements and finds that a
14 Tier II interview is not warranted at this time.
- 15 3) The Court has reviewed and considered the parties' positions regarding Father's request for
16 volleyball tournaments to be prioritized over parenting time including travel. Mother's motion to
17 strike the supplemental declaration and request for sanctions are denied. Father's request as it
18 relates to Mother's summer trip, which has already taken place, is moot. Going forward, the
19 parties shall continue following this Court's 6/25/2025 order relating to Massimo's
20 extracurriculars and parenting time / pre-planned travel, which remains in full force and effect
21 without modification.
- 22 4) The Court will prepare the Findings and Order After Hearing.
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